

RE: Indiana Access to Public Records Act Request: FOIA - Spillman Flex Docs (Gary Police Department)

126576-43919895@requests.muckrock.com <126576-43919895@requests.muckrock.com>

Tue 08/30/22 12:00 AM

To: Janet Wallace <jwallace@ci.gary.in.us>

Gary Police Department
APRA Office
555 Polk Street
Gary, IN 46402

August 30, 2022

This is a follow up to a previous request:

To Whom It May Concern:

I wanted to follow up on the following Indiana Access to Public Records Act request, copied below, and originally submitted on March 21, 2022. Please let me know when I can expect to receive a response.

Thanks for your help, and let me know if further clarification is needed.

View request history, upload responsive documents, and report problems here:

[https://accounts.muckrock.com/accounts/login/?](https://accounts.muckrock.com/accounts/login/?next=https%3A%2F%2Fwww.muckrock.com%2Faccounts%2Flogin%2F%3Fnext%3D%252Faccounts%252Fagency_login%252Fgary-police-department-8349%252Ffoia-spillman-flex-docs-gary-police-department-126576%252F%253Djwallace%252540ci.gary.in.us&url_auth_token=AAAashKSNfnCxFZBlj0DN8v_NQ0%3A1oStMF%3AeKX8QTUTLpRIBbnz_qol1hDfrL1sovK58InNccWF0IM)

[next=https%3A%2F%2Fwww.muckrock.com%2Faccounts%2Flogin%2F%3Fnext%3D%252Faccounts%252Fagency_login%252Fgary-police-department-8349%252Ffoia-spillman-flex-docs-gary-police-department-](https://accounts.muckrock.com/accounts/login/?next=https%3A%2F%2Fwww.muckrock.com%2Faccounts%2Flogin%2F%3Fnext%3D%252Faccounts%252Fagency_login%252Fgary-police-department-8349%252Ffoia-spillman-flex-docs-gary-police-department-126576%252F%253Djwallace%252540ci.gary.in.us&url_auth_token=AAAashKSNfnCxFZBlj0DN8v_NQ0%3A1oStMF%3AeKX8QTUTLpRIBbnz_qol1hDfrL1sovK58InNccWF0IM)

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If prompted for a passcode, please enter:

BULHWEJJ

Filed via MuckRock.com

E-mail (Preferred): 126576-43919895@requests.muckrock.com

PLEASE NOTE OUR NEW ADDRESS

For mailed responses, please address (see note):

MuckRock News
DEPT MR 126576
263 Huntington Ave
Boston, MA 02115

PLEASE NOTE: This request is not filed by a MuckRock staff member, but is being sent through MuckRock by the above in order to better track, share, and manage public records requests. Also note that improperly addressed (i.e., with the requester's name rather than "MuckRock News" and the department number) requests might be returned as undeliverable.

On March 18, 2022:

Subject: Indiana Access to Public Records Act Request: FOIA - Spillman Flex Docs (Gary Police Department)

To Whom It May Concern:

Pursuant to the Indiana Access to Public Records Act, I hereby request the following records:

All documentation on Motorola's Spillman Flex Software (<https://www.spillman.com/products/flex/>) including, but not limited to, the following:

- Initial Bid Documents
- Current and previous contracts with Motorola regarding Spillman Flex
- Requests for Proposals
- Memorandum(s) of Understanding
- Any privacy impact assessments
- Any product manuals
- Any instructional materials or presentations
- Use policies and standard operating procedures
- Data retention policies
- Letters of Interest
- Usage policies
- Any informal agreements or other documents that reference "Spillman" or otherwise guide its use or the relationship between this agency and the provider or developer of the software.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 7 business days, as the statute requires.

Sincerely,

J Ader

View request history, upload responsive documents, and report problems here:

[https://accounts.muckrock.com/accounts/login/?](https://accounts.muckrock.com/accounts/login/?next=https%3A%2F%2Fwww.muckrock.com%2Faccounts%2Flogin%2F%3Fnext%3D%252Faccounts%252Fagency_login%252Fgary-police-department-8349%252Ffoia-spillman-flex-docs-gary-police-department-126576%252F%253Femail%253Djwallace%252540ci.gary.in.us&url_auth_token=AAAashKSNfnCxFZBlj0DN8v_NQ0%3A1oStMF%3AeKX8QTUTLpRIBbnz_qol1hDfrL1sovK58lnNccWF0IM)

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**INTERLOCAL AGREEMENT
TO ESTABLISH CONSOLIDATED COMMUNICATIONS CENTER(S) AND INTEROPERABILITY
FOR
LAKE COUNTY, IN**

WHEREAS, each of eighteen local government units in Lake County operates a Public Safety Answering Point ("PSAP") for dispatching fire, ambulance and law enforcement services;

WHEREAS, the local government units that have signed this Interlocal Agreement are required by Indiana law to combine public safety communications services provided by the units; and

WHEREAS, the local government units in Lake County that have signed this Interlocal Agreement ("Parties") are required to combine their respective resources into a joint venture to consolidate the dispatching of fire, ambulance and law enforcement services, with the goal of achieving effective and efficient operation of such a venture and developing an interoperable communications system.

NOW THEREFORE, the Parties enter into this Interlocal Agreement ("Agreement"), pursuant to IC 36-1-7 (interlocal agreement) and IC 36-8-16.5-51(e) (consolidation of PSAPs), to provide for the acquisition, equipping, operation and maintenance of the consolidated communications center(s) ("Center") and an interoperable communications system ("System") according to the following terms:

[STANDARD LAKE COUNTY LANGUAGE FOR CREATION OF THE COUNTY AGENCY HAS BEEN
INCORPORATED IN THE COUNTY ORDINANCE CREATING THE COMMISSION]

1. DURATION OF AGREEMENT

- 1.1. This Agreement commences upon execution of Agreement by the initial phase Parties and remains in effect unless terminated by agreement of the Parties, the Lake County Public Safety Communications Commission ("Commission") and Lake County Board of County Commissioners ("County Commissioners").

2. PURPOSES OF AGREEMENT

2.1. The purpose of this Agreement is to:

- provide a method to fund the acquisition, equipping, operation and maintenance of the Center and System and provide for the ongoing management of the Center and System, to improve interoperability among public safety agencies; and
- bring Lake County into compliance with state law requiring that a county not have more than two PSAPs by December 31, 2014.

3. PHASED APPROACH TO CONSOLIDATION

3.1. The consolidation may take place in phases. If the Commission decides to adopt a phased approach, it will take place in accordance with Paragraphs 3.2 through 3.4.

3.2. INITIAL PHASE - The initial phase will involve several municipalities that operate a PSAP and the Lake County Sheriff's Department and choose to be a part of the initial phase. The Commission will determine which local government units will be involved in the initial phase, when to add more local government units that have requested to participate and in what order they will be added.

3.3. PARTICIPATION - The executive of a local government unit that wants to participate in the consolidation must make a request to the Commission upon resolution by the fiscal body of the unit. Upon approval by the Commission, the executive will sign the Agreement. The requesting local government unit must cease PSAP operations upon direction by the Commission once the Center is operational.

3.4. FINAL PHASE - The final phase starts when all local government units that have PSAPs as of March 15, 2010 have executed this Agreement and Lake County has complied with state law regarding the consolidation of PSAPs.

3.5. FAILURE TO PARTICIPATE - If a municipality or the Lake County Sheriff's Department decides not to participate in the Agreement by a date established by the Commission in accordance with state law, the municipality or Department will not be permitted to receive E 911 or wireless emergency enhanced 911 information as a PSAP nor will it be eligible to receive E 911 or wireless emergency enhanced 911 funds.

4. PARTIES' RESPONSIBILITIES

4.1. Each Party shall:

- assist in the establishment of the Center in any way needed including providing reasonable access to authorized contractors to dispatch and radio equipment at the Party's facilities for site surveys and implementation of the consolidated dispatching function;
- allow the Commission to use its frequencies, if needed for public safety interoperability; the parties retain the licensure of the frequency; and
- provide any existing call taking or dispatching equipment owned by a Party to the Commission for operation of the Center, if requested by the Commission and agreed to by the party in accordance with state law.

5. LAKE COUNTY BOARD OF COUNTY COMMISSIONERS RESPONSIBILITIES

5.1. The County Commissioners are responsible for the procurement and implementation of the Center and System. The County Commissioners may take any action in furtherance of its responsibilities. It may delegate any of its powers and duties to the Commission. The responsibilities include the powers set forth in the Lake County Ordinance establishing the Lake County Public Safety Communications Commission and :

- developing a plan for consolidating dispatch functions including developing an interoperable communications system, based on the recommendations of the Commission;
- procuring or leasing the property, structures, infrastructure for radio or anything else related to the consolidated dispatching function or System, equipment, network or telephone infrastructure lines, services and anything else needed for a successful consolidation of dispatch functions and development of System;
- minimizing any financial requirements on Parties by use of grants, bequests, E 911 and wireless emergency enhanced 911 revenues and other sources of revenue;
- ensuring that all Parties and public safety agencies are treated fairly in dispatch operations and operation of System.

6. LAKE COUNTY PUBLIC SAFETY COMMUNICATIONS COMMISSION

The County Council has established the Commission as a legal entity to direct the operations of the Centers. The Commission shall further public safety communications throughout Lake County by representing not only the interests of the entire county but also the interests of the Lake County municipalities and public safety agencies.

6.1. POWERS - The Commission has the powers set forth in the ordinance establishing the Commission:

6.2. NON-PUBLIC SAFETY AGENCIES - The Commission may permit non-public safety agencies access to the dispatching function and System at its discretion.

6.3. FISCAL BODY APPROVAL - The fiscal body of each Party must approve the Agreement either before or after it is approved by the executive.

6.4. DELEGATION BY COMMISSION - The Commission may delegate any of its authority or duties to the executive director except its power to amend or terminate the Agreement.

6.5. AGENDA AND MINUTES - The agenda and minutes from each meeting must be made available to all commission members, every mayor and town council president and the presidents of the county commissioners and the county council.

6.6. OFFICERS - The selection of officers will be in accordance with the ordinance establishing the Commission.

7. CONSOLIDATION PLAN (To Be Developed by the Commission)

8. STAFFING PLAN (To Be Developed by the Commission)

9. FUNDING PLAN (To Be Developed by the Commission)

9.1.FISCAL OFFICER - The County Commissioners shall designate a fiscal officer to receive, disburse and account for all monies of the joint undertaking.

10. BUDGET (To Be Developed by the Commission)

11. ACQUISITION, OWNERSHIP AND DISPOSAL OF REAL AND PERSONAL PROPERTY

11.1.REAL ESTATE - Any real estate acquired shall be purchased by the County Commissioners and will remain the sole property of the County Commissioners. In the event of the disposal of any real estate utilized in this joint venture, the County Commissioners are entitled to all proceeds from any sale to be used exclusively for public safety communications.

11.2.PERSONAL PROPERTY - All personal property acquired for the Center will be owned by the County Commissioners. Personal property will be disposed of under Indiana law governing disposal of property by public entities. Existing property purchased and used by any entity remains the property of the purchasing entity. The executive director shall maintain a current inventory of all equipment.

12. INTEROPERABLE COMMUNICATIONS SYSTEM

12.1.The System will be established by the County Commissioners. It may be established in phases. The rights and responsibilities of the local government units under the System will be established under a separate Memorandum of Understanding.

13. TERMINATION OF AGREEMENT

- 13.1. DISPOSAL OF PROPERTY - In the event of termination of this agreement, the Commission must formulate a plan which provides for the disposal of personal property. The plan must be approved by the County Commissioners before it is effective.

IN WITNESS WHEREOF THE FOLLOWING AGREE TO THE TERMS OF THE AGREEMENT:

President, Lake County Board of Commissioners

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

Date

	Date
	Date
	Date
	Date

Gary Police Department - Policies & Procedures			
	Type of Directive	Effective Date	Policy Number
	General Order	2-27-2006	1-89
	Title	Duration	Cross Reference
	Property Disposal		
Authorized by Chief of Police:		Rescinds: All Previous	

INDEX WORDS

Alcohol; disposal of
 Blood; disposal of samples
 Gambling devices; disposal of
 Money; unclaimed
 Narcotics
 Property; found
 Property; lost, unclaimed
 Weapons; disposal of

I. POLICY

All personnel shall exercise scrupulous attention to safeguarding all property within departmental custody. All lost, found, and unclaimed property of non-evidentiary value (or which no longer has evidentiary value) shall be disposed of according to federal and state statutes. Personal property coming into departmental possession as evidence may be disposed of only after approval by the prosecutor's office. Under no circumstances shall property that is turned in or seized become property of a department employee.

II. PURPOSE

To establish guidelines for the disposal of lost, found, and unclaimed property of non-evidentiary value.

III. PROCEDURES

A. Responsibilities

Each officer is responsible for the safe storage of evidence, found property, and contraband. Officers are equally responsible for proper records-keeping of all property. Officers shall maintain appropriate logs of all incoming and outgoing property, plus documents concerning auctions or destruction of contraband. The chief of police shall ensure correct control and accountability of all property.

Policy Number	Property Disposal
1-89	

B. General procedures

1. The department shall make every reasonable effort to identify and locate owners of lost property.
2. Property not claimed by the owner(s) within 90 days is considered abandoned and shall be disposed of without further notice. (IC 35-33-5-5)
3. Property stored as evidence shall be held no longer than 60 days after final court disposition. (IC 35-33-5-5)
4. In any event, final disposition of any found, recovered, or evidentiary property shall be reached within six months after all legal requirements have been satisfied.
5. Perishable substances
 - a. Perishable evidentiary items shall be photographed and returned to the owner immediately when possible and practical.
 - b. Perishable items whose owner cannot be located shall be destroyed or donated to a charitable organization, upon approval of the chief.

C. Release of non-evidentiary and lost/found property

1. Non-evidentiary and lost/found property shall be released to the true owner or his agent when claimed.
2. Satisfactory proof of ownership (e.g., serial number, receipts, sales slip, invoice) must be presented. In lieu of proof listed above, when an owner can describe a property item in great detail as to color, style, brand, scratches, marks, and condition (characteristics which only the owner would know), property may be released.
3. Any other person seeking release of property, particularly when a dispute exists about ownership, shall be advised that the property can only be released to them as a result of the following:
 - a. A valid court order.
 - b. Written consent from the city attorney.

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Policy Number	Property Disposal
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D. Disposal of lost, found, and non-evidentiary property

1. The investigator or evidence custodian (see GO 2-15 for a description of responsibilities) shall prepare an annual inventory of non-evidentiary items that have remained unclaimed. At least once quarterly, the investigator or evidence custodian or his or her designee shall conduct an inspection of the storage area and files to ensure that proper storage and tagging procedures have been maintained.
2. The investigator shall present the quarterly inspection and annual inventory to the Supportive Service Commander. The Supportive Service Commander may conduct a spot inspection or audit without notice.
3. The Supportive Service Commander shall ensure disposal of these items in accordance with procedures specified by law (e.g., advertisement, public sale, deposit of proceeds), and will provide a certificate of disposal, properly witnessed by disinterested persons, for files. The may delegate this responsibility.

E. Unclaimed money or other values

Abandoned or unclaimed money, checks, or securities and other intangible property as defined in
(IC 34-24-1-4) must be reported to and turned over to the State Treasurer.

F. Weapons

1. Following all criminal proceedings, legally possessed weapons not ordered confiscated by the court shall be returned to the owner or the owner's agent.
2. Proof of ownership (e.g., serial number, receipts, sales slips or detailed descriptions) shall be required before release.
3. Disposal of contraband weapons and those ordered confiscated by the court shall be according to court orders, after an IDACS/NCIC check.
4. Firearms not retrieved by the owners or taken into departmental inventory shall be destroyed.

G. Drugs/narcotics (See GO 2-16)

1. Large seizures in excess of 10 pounds of controlled substances or marijuana shall be disposed.

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Policy Number	Property Disposal
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2. Controlled substances and marijuana of no evidentiary value shall be disposed.
3. Property seized in connection with the illegal manufacture, sale, or distribution of controlled substances shall be handled according to asset forfeiture procedures. Per IC 34-24-1-1. See GO 2-36, asset forfeitures.
4. Substances analyzed and found to be non-controlled, where no demand has been made for their return within seven days after all rights to appeal have been exhausted, shall be listed on a court order and destroyed in the same manner as controlled substances.

H. Alcohol

1. Alcoholic beverages which are not contraband and have no evidentiary value shall not be seized and shall be retained by the owner.
2. Contraband alcoholic beverages (those possessed by underage drinkers) and alcoholic beverages confiscated by the court shall be disposed.

I. Gambling

1. Property and evidence seized incident to an arrest for violation of 35-33-5-5.1, shall be returned to the owner after one (1) year.
2. Money seized shall be disposed of according to court order.

J. Blood samples (DUI arrests)

1. The Supportive Service Commander shall destroy blood sample containers, unless otherwise directed by the accused or his attorney.
2. The destruction shall be accomplished routinely by the officer who originally recovered the evidence.

(CALEA STANDARDS: 61.2.3, 74.4.1, 83.3, 84.1)

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1-89		

Gary Police Department - Policies & Procedures			
	Type of Directive General Order	Effective Date 2-27-2006	Policy Number 1-91
	Title Records and Reports	Duration	Cross Reference
Authorized by Chief of Police:		Rescinds	

POLICY

Our policy is to ensure a high degree of accountability and professionalism by establishing rules concerning records and/or reports generated by Department employees.

FALSE

No employee of the Department shall knowingly make a false report, enter or cause to be entered in any Department books, records or reports, any inaccurate, false or improper information or material matter.

DESTRUCTION OF RECORDS

No employee will destroy, alter, or remove any report or record of this Department.

DUTY TO REPORT ALL CRIMES,

PERSONAL KNOWLEDGE -- Employees shall report all crimes, violations, emergencies, incidents, traffic congestion or detours resulting from traffic accidents, or other information of concern to the Department that comes to their attention. Employees receiving or processing facts which should be known to the Department shall not conceal this information, but shall report the facts accurately through official channels.

PERSONAL OBSERVATION -- Employees observing anything of a dangerous or hazardous nature on the streets, sidewalks, or public places, shall promptly take action. The Communications Center will be requested to notify the appropriate public works/utilities personnel to remove roadway debris and correct hazardous conditions involving roadways, highway traffic control devices and roadway lighting systems.

CITIZEN INFORMATION -- It is the duty of every employee to report any information given by any citizen regarding matters which indicate the need for action by the Department.

Policy Number 1-91	Gary Police Department - Policies & Procedures	Page 1 of 2
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Policy Number	RECORDS AND REPORTS
1-91	

**COMPLETING OFFICIAL
REPORTS
[82.2.4]**

Employees shall make reports promptly, accurately and completely in conformity with established specifications and requirements.

Supervisors shall complete an initial review of reports, sign or initial as appropriate and submit for final processing.

This review process should ensure timely and accurate information is submitted, as well as assist in identifying problems and revealing essential modifications.

POLICE BUSINESS

Employees will treat as confidential the official business of the Department and will not reveal official information.

Information such as a proposed movement or disposition of the force or regulations made for the administering of the Department, will only be disclosed to members of this Department and employees of other governmental agencies, when, because of such person's duties and assignment, it is necessary and proper that such information be disclosed.

**RECORDS
[82.1.1]**

Department records shall be permanently retained in the Records Division.

Certain records, such as those relating to internal investigations, on going criminal investigations or criminal intelligence are authorized to be maintained at the unit level to meet operational and confidentiality requirements, at the discretion of the Commanders.

**RELEASE OF
OFFICIAL RECORDS**

The Records Division is the only unit of the Department authorized to release copies of police reports and records.



Reliable Innovation

4625 West Lake Park Blvd.
Salt Lake City, UT 84120
(801) 902-1200
fax (801) 902-1210

SALES QUOTE / PURCHASE AGREEMENT

Gary Police Department
555 Polk Street
Gary, IN 46407

Contact: Chief Gary Carter

Phone: 219-881-1201
Agreement Preparation Date: 12/28/10
Expiration Date: 12/31/10
Operating System Server: IBM/SUN
Quote Number: 2010-0640
Salesman: Andy Doyle

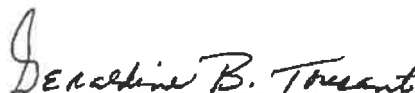
This Sales Quote / Purchase Agreement ("Agreement") is made and entered into this _____ day of _____, 2010 by and between the Customer and Spillman Technologies, Inc. ("Spillman"), 4625 West Lake Park Blvd., Salt Lake City, UT 84120.

Section 1: Quote Summary

Spillman Software	505,119
Spillman Professional Services	344,916
Total Purchase Price \$	<u>850,035</u>

Approved and Accepted by:

I have read this Agreement in its entirety and hereby approve and accept the terms and conditions of this Agreement as contained herein.


Signature of Authorized Representative

Print Name of Authorized Representative

Title of Authorized Representative

Date

Section 2: Spillman Software

Software

System Core (HUB)

- Connectivity to the Host Agency (Lake County) is the responsibility of the agency.
- File attachments in native formats (i.e. Word and Excel documents, sound and video clips)

Integrated HUB

- Single-source open relational database with GJXDM and NIEM compliance
- Centralized tables: Names, Vehicles, Property, and Wants, Business, Additional Name
- Centralized tables history for name changes
- Seamless integration - single database for all modules
- Powerful searching capabilities - fields, restrict, expand, cross table, join table
- Versatile reports - over 2000+ built-in statistical reports

Message Center

- Single-source location for all types of messages
- Emails, instant messages, alerts, BOLOs, local state and national returns
- Secure transmissions from unit to unit, between base and unites and on query returns

Geobase

- Geo-validation of all addresses
- GPS x- and y- coordinates of addresses, unit locations, incident locations
- Automatic alerting notifies dispatch of unrecognized addresses

Integrated Involvements

- Relationship links automatically created between records and data
- Enhances investigative ability by connecting key pieces of information
- Visual Involvements allows investigators to see and analyze relationships between data

Workflow Management

- Track the status and assignment of an individual record
- Customize a records approval configuration
- View the approval status history of a record
- Search for specific approval records
- Generate workflow approval records atomically

Resource Information

- Linked directly to CAD allowing dispatchers to find resources available for city use
- Includes contact information for resource owners

Dissemination

- Easily track all reports disseminated to public
- File attachments allow for exact copy to be stored in Spillman database

Demographic summary

- Record racial profiling statistics
- Agency specific demographic reporting capabilities

Imaging

- Ability to capture, edit, archive, link, and share high-quality image files
- Image capture from scanners, cameras or downloads with easy and convenient image editing
- Easy photo lineup generation and record attachment
- Ability to attach hundreds of images to records in any table
- Ability to choose an image to appear as a thumbnail in the top right corner of the record
- Integrated searching with seamless connection to all Spillman modules

IDACS interface

- Local, state, and national database access from within the Spillman system
- Customized security for accessing and updating data
- Easy access to information on warrants, missing persons, and wanted persons
- Powerful searching on vehicle registration, stolen vehicles, driver's licenses, etc.
- Access to transaction forms for easy report creation and submission
- Query and transaction responses can be printed, e-mailed or attached to a permanent record

Dispatch Solution: (9 dispatch positions)

- licensing fees for the Gary Police Department were subtracted from the cost of software because of eventual consolidation with Lake Co.

Computer Aided Dispatch (CAD)

- Customizable CAD screen to improve productivity for dispatch
- Visual and audible alerts to notify dispatchers of call status changes or expirations
- Definable special instructions with pop-up displays for handling specific call types
- Unit recommendations based on call nature, location, and unit specialty
- Specialized skills searches to help locate appropriate people and resources
- Automatic radio log entries that display when call statuses change
- Commercial dispatching for tow/wrecker companies, private ambulances, etc.
- Geobase integration providing detailed street and address information
- Mapping integration displays call type/location and unit location
- Instant query available for any record in master tables

E-911 Interface

- Automatic field entry to insert agency-specified call information into the CAD screen
- Automatic transmission and mapping of ALI data
- Automatic address verification with Spillman Geobase
- Automatic location plotting on Spillman's CAD map
- Phases I and II compliant according to FCC guidelines

CAD Mapping

- Live call information and live units display (including real-time status)
- Drag-and-drop dispatching capabilities with flexible map layers
- Visual intelligence about an area, including street names, buildings, districts, fire/EMS zones, etc.
- Integrated for use with the CAD and Mobile AVL modules
- Simple mapping toolbar to easily change map displays
- Customizable map configurations that can be saved for later use

Response Plans

- Call-back assignments prepare agencies for various incidents
- Premises integration provides access to special instructions for HazMat situations
- Unit recommendations can be customized for specific response plans

Records Solution

Law Records

- Law incident table consolidates all law incident records in one database
- Case Management tools track case details from beginning to end
- Automatic visual alerts indicate dangerous, wanted, or missing persons
- Organized dissemination tracks all information released from an agency
- Unlimited intelligence on a person's hangouts, associates, employment, etc.
- Advanced security protects critical and sensitive data
- Law reporting makes crime analysis, presentations, and archiving easy
- UCR compiles and maintains detailed information for submission
- Non-custodial bookings

UCR Reporting

- Automated UCR statutes
- Accurate tracking and reporting of UCR statutes

Pin Mapping

- Track, analyze, and display crime statistics in your jurisdiction
- Enhanced crime analysis investigations
- Powerful visual mapping tools for revealing crime trends
- Searching capabilities for investigative research on suspects, burglaries, violent crimes, etc.
- Comprehensive toolbar to adjust map layers, colors, and incidents shown
- Map layer viewing options include orthographic, street, fire, and water

Pawned Property

- Pawn shop information on contacts, address, phone number, and owners
- Pawn activity tracking records site visits, inspections, spot checks, etc.
- Electronic pawn data imports simplify regulation of local pawn shop activity
- Preformatted reports identify frequent pawners and determine recovery rates

Vehicle Impound

- Detailed Impound Records track vehicles, status, locations, sale dates, and prices
- Fee Management organizes impound, towing, and storage fees
- Preformatted Notifications make it easy to notify interested parties of intent to sell

Evidence Management

- Evidence record integration
- Traceable chain of custody for investigations, safekeeping, and archiving
- New evidence items can be linked to name, vehicle, and property information
- Evidence history to track items from receipt to disposal
- Evidence reports proving instant information on all evidence

Evidence Bar Coding

- One barcoding hardware set is included in cost. Any additional sets will cost \$1,950 each
- Bar code interface simplifies data entry, archiving, and tracking

Licenses & Permits

- Detailed permit information on status, holder, type, and contact person
- Transaction processing for fees, receipts, and adjustments
- Reporting features, providing snapshots of activity to help identify trends
- Integration with Law Records reduces the need for duplicate data entry

Mobile Solution - 100 licenses

Mobile RMS Queries

- Local RMS queries
- Field narratives feature to allow officers to create, modify, and update reports in the field
- View photos of suspects, vehicles, and properties that are attached to records in your system
- Access the Spillman records management system from any mobile patrol unit
- 192-bit encryption protects data

Mobile State/IDACS/NCIC Queries

- Local, state, and national database access from within the Spillman system
- Customized security for accessing and updating data
- Easy access to information on warrants, missing persons, and wanted persons
- Powerful searching on vehicle registration, stolen vehicles, and driver's licenses
- Access to transaction forms for easy report creation and submission
- Query and transaction responses can be saved for up to 48 hours □

Mobile Messenger

- Mobile instant messaging sends personal, group, and specialized messages
- Local, state, and federal returns can be viewed through Mobile Messenger
- Automatic alert notifications for an ATL or BOLO
- Secure transmissions from unit to unit, between base and units, and on query returns

Mobile Voiceless CAD

- Secure active-call and unit status viewing
- Provides direct access to information needed to complete assignments, without radio contact
- While responding to a call, officers can view updated information as it is entered by dispatchers
- Voiceless Dispatch frees radio airtime for higher-priority calls, reducing airtime
- Prevents others from monitoring your communications over a non-secure radio
- Access to transaction forms for easy report creation and submission

Law Offense/Incident Form

- Officers able to complete offense report directly from the MDT in the field
- Critical field reporting information entered directly into Spillman database from law form
- Name, address, and property fields auto-populate with pre-defined queries
- Customizable fields for agency specific data
- Integrated with Spillman CAD and RMS modules

Corrections Solution

Livescan Interface - L-1

- Populated from server names database

Resources Solution

Personnel Management

- Keep an accurate account of administrative activities such as commendations and disciplinarys
- Detailed employee information such as address, phones, and emergency contact
- Special skills and CAD integration gives dispatch information on personnel expertise
- Personnel reports to summarize pay status, leave requests, training, etc.
- Attendance/workload management tools to track employee availability and productivity

Equipment Maintenance

- Maintenance scheduling and reminders
- Completed maintenance tracking calculates operating costs and equipment value
- Equipment tracking records name, quantity, scheduled and completed maintenance
- CAD integration allows dispatch to find and dispatch appropriate equipment

Fleet Maintenance

- Fleet Maintenance history and scheduling
- Fleet repair reports and tracking
- Gas mileage summary records fuel consumption and mileage
- Vehicle purchasing displays or prints reports of purchase information
- Fleet reporting with preformatted or customized templates

Section 3: Second Year Maintenance

Services

Installation & Implementation Management	
• Total implementation days onsite:	12
• Pre-implementation meeting	
• Hardware installation	
• Custom programming	
• Interface installation and testing	
On-site Training & Assistance	
• Total training days onsite:	81
• Administrative assistance and system configuration assistance	
• Training facility and equipment provided by agency	
• End-user training (up to 16 attendees per class)	
<u>Class Description</u>	
System Fundamentals	
Dispatch Suite	
Law Records Suite	
Mobile Suite	
• Weeks onsite for go-live assistance:	4
• Weeks onsite for follow-up training 3-6 months after go-live:	1
• Weeks onsite annually for follow up training	1
Data Conversion	
• Data conversion requires a scope of work document to be signed by both Whitebox Technologies and Gary Police Department (See Attachment)	
• All conversion efforts and negotiations shall take place between Whitebox Technologies and Customer	

TOTAL PURCHASE PRICE:

\$ 850,035

Section 4: Second Year Maintenance

Second year maintenance fees are not included in the Purchase Price of this Agreement and is provided here as reference information only. Second-year maintenance fees are charged beginning 15 months after the execution of this Purchase Agreement, regardless of the date on which Customer's actual use of the Spillman Software began, except to the extent any delay in such use is due to the fault of Spillman Technologies.

System Maintenance

- First 15 months maintenance included at no additional fee
 - Second-year support on software modules - \$104,642
- See Section 7: Notes

Second Year Maintenance Total: \$ 104,642

Andy Doyle

Section 5: Payment Terms

ASPE

SECTION	DESCRIPTION	CATEGORY TOTALS	Payment Upon Contract Signing Services Rendered	Payment Upon Training Completion	Payment Upon Go Live	PAYMENT OTHER	"OTHER" PAYMENT DUE BY
2	Software	505,119	425,000	80,119			
3	Services	344,916			344,916		
3	First Year Maintenance	included					

Price Totals:	850,035	425,000	80,119	344,916	
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Total Purchase Price:	\$	850,035
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SALES QUOTE / PURCHASE AGREEMENT

Section 6: Agreement Terms

1. This Agreement only covers the products and services listed herein.
2. Customer agrees to pay all invoices within thirty (30) days of invoice date.
3. Customer agrees to pay Spillman the Agreement Purchase Price according to the payment terms stated in Section 5. The Agreement Purchase Price is valid only through the expiration date indicated and only if all listed products and services are purchased as a complete package. ("Purchase Price" does not include second year maintenance fees.)
4. Customer is solely responsible for the payment of any and all taxes resulting from the acceptance of this Agreement and purchase of the products and services described herein.
5. When signed by an authorized Customer representative this Agreement serves as the Purchase Agreement between Customer and Spillman.
6. This Agreement is subject to all terms and conditions in the corresponding, valid Computer Software End-User License Agreement (the "License Agreement") and the related Maintenance Agreement between Customer and Spillman.
7. Any of the following events shall constitute a "default" under this Agreement:
 - a. Customer's failure to pay Spillman any charges, costs, or other payment accruing herein, if such failure has not been corrected within ten (10) calendar days after Spillman has given Customer written notice of such failure; or
 - b. Customer's failure to perform any other obligation set forth in this Agreement, including any act of repudiation or wrongful rejection of the product, if such failure has not been corrected within thirty (30) days after Spillman has given Customer written notice of such failure.
 - c. Spillman's failure to perform any obligations set forth in this Agreement, if such failure has not been corrected within thirty (30) days after Customer has given Spillman written notice of such failure.
8. Upon occurrence of a default, the non-defaulting party may:
 - a. Terminate this Agreement and invoke all rights the party possesses up to termination, including, in Spillman's case, repossession of the Product, and
 - b. If Customer remains liable for any monetary obligations created under this Agreement, Spillman may accelerate and declare all obligations of Customer created under this Agreement to be immediately due and payable by Customer as a liquidated sum and proceed against Customer in any lawful way for satisfaction of such sum; and
 - c. In addition to the forgoing, seek any other remedies that may be available at law or in equity.
9. Customer acknowledges that the monetary obligations of the Customer to Spillman under this Agreement constitute a commercial account. Customer shall pay, in addition to all other amounts owed to Spillman, interest calculated at one-and-one-half percent (1.5%) per month on all amounts that have not been paid to Spillman pursuant to the terms of this Agreement, or the highest rate permitted by law, whichever is less. Customer shall also be liable for all costs of collection, including reasonable attorney's fees whether or not a suit is instituted. Any delay or failure of either party in exercising any right hereunder, or any partial exercise thereof, shall not be deemed to constitute a waiver of any right granted hereunder or at law.
10. This Agreement constitutes the entire Purchase Agreement between the parties, with respect to the products and services listed herein, and no amendment to this Agreement shall be binding on either party unless such amendment is in writing and executed by authorized representatives of both parties. The parties understand that Attachment A, Shared License Agreement and Attachment B, Whitebox scope of work shall be considered with this Agreement as an integrated Agreement and is the complete and exclusive statement of the parties obligations and responsibilities, with respect to the products and services listed herein and therein, except as otherwise provided by law.

Gary Police Department - Policies & Procedures			
	Type of Directive General Order	Effective Date 2-27-2006	Policy Number 1-103
	Title Taking/Making Reports	Duration	Cross Reference
Authorized by Chief of Police:		Rescinds	

POLICY

Our policy is for employees to initiate a permanent record of all actions taken, when necessary. This is to assure an accurate flow of information, which is essential to the Department's operations.

KEEPING A NOTEBOOK

Officers should keep with them a notebook in which they are able to record names and addresses of complainants and witnesses, identities of persons arrested, the nature of the offenses and related evidence, and the date, time and other facts that may be important to the reporting of an incident.

CRIME REPORTS FROM MINORS

There are no state laws requiring that a person be of a certain minimum age to report a crime to the police.

However, officers should use good judgment and common sense in determining whether to take a report from a minor or make provisions for a responsible parent or guardian of the minor to file the crime report.

The Department employee should consider if:

- There is reasonable cause to believe a crime has been committed and
- The minor wishing to report the crime has knowledge of the crime and possesses adequate judgment, then,
- A report should be taken from the minor and the crime handled as though it were an adult reporting.

CRIME REPORTS FROM PERSONS

In this instance, the situation usually arising is one where a person has been entrusted with the care of the home and property of someone away from the city or otherwise unavailable.

Should a report be taken from an individual who is under the

Policy Number 1-103	Gary Police Department - Policies & Procedures	Page 1 of 5
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influence of alcohol or other substance, the officer may return at a later date to take any reports from individuals who appear to be intoxicated. The level of intoxication is at the officers discretion whether or not a report should be made.

CRIME REPORTS FROM PERSONS

If, in the opinion of the Department employee called upon to take a report, there is reasonable cause to believe a crime has been committed:

- A report should be taken from the person entrusted with the care and custody of the property, and,
- The employee should provide the reporting party with the case number and Additional Property Report and instructions for the owner to make a supplementary report upon return.

CASE NUMBERS [82.2.3]

CASE NUMBER - All calls for service and self-initiated activity are documented by the Computer Aided Dispatch (CAD) System. Initial documentation is established by the automatic assignment of a case number.

- Each case number is issued in numerical order and is prefaced by the year in which the report was taken.
- No duplication of a case number shall occur.

WHEN TO TAKE REPORTS [82.2.1] [82.2.2]

Refer to the table for report information.

DR# USE MATRIX	
CASE NUMBER IS REQUIRED	CASE # MAY BE ASSIGNED FOR
All arrests	Citizen reports of crime
All criminal investigations	Citizen complaints
Incidents initiated by Dept. employees	Citizen requests for service
Traffic accidents with death, injury, or property damage over \$1000.00	Civil disputes including child custody
Suicide attempts	
Suicides	

FOLLOW-UP INVESTIGATION

All reporting of crimes should include information necessary for an officer to recommend and a supervisor approve, that a follow-up investigation be conducted or a case be closed.

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In most cases, a recommendation for follow-up can be based upon the presence of any or all of the following factors;

- Was the suspect(s) identified?
- Was the suspect vehicle(s) identified?
- Was there a witness to the crime?
- Was physical evidence found and traced?
- Are there undeveloped leads available?
- Is there a modus operandi (MO) apparent?
- Was a suspect(s) named?
- Was a suspect(s) described?
- Was there no further information available?

SUPERVISORY REVIEW [82.2.4]

Shift supervisors are responsible for reviewing and accounting for reports that have been initiated by case number during their tour of duty.

This includes specific responsibility to ensure that:

REPORT FORMS – The proper forms, either hard copy or electronic, are completed in each type of incident and that those forms are included in the completed report.

REPORT APPEARANCE -- The completed reports, either hard copy or electronic, are neat and with appropriate spelling, grammar and writing style.

REPORT NARRATIVE – The narrative properly documents all actions taken by the officer in a given incident and reflects all pertinent information in a straightforward, easily comprehended manner.

Probable cause -- All information that establishes the probable cause used to justify an arrest or request for a warrant is included.

Use of force -- All information pertaining to any use of force by officers is included.

The narrative also represents proper police procedure and investigative methods used during the incident.

SUPERVISORY REVIEW (con't)

FOLLOW-UP ASSIGNMENT -- Based upon the factors detailed in the report, a determination is made that a follow-up investigation is warranted.

The supervisor may assign an officer to conduct the follow-up investigation, or assign the follow-up investigation to another

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Bureau.

CASE CLOSURES

After reviewing the report the supervisor may decide to close the case as further investigation is unneeded or unwarranted.

If a case is closed, the supervisor ensures that the following closure types are used:

- **AA** Arrest/Citation Issued, Adult
- **AJ** Arrest/Citation Issued, Juvenile
- **AC** Administratively Closed
- **CO** Closed Other (includes civil matters)
- **EA** Exceptionally Closed – adult suspect or victim
- **EJ** Exceptionally Closed – juvenile suspect or
- **UA** Early Closed

If an investigation results in the issuance of an arrest warrant, when closing the case use the following closure types:

- **WA** Arrest Warrant issued, Adult
- **WJ** Arrest Warrant issued, Juvenile.

OFFICERS ASSIGNED TO FOLLOW-UP INVESTIGATIONS

PRIMARY OFFICER -- Once the case has been assigned, an officer will remain as the primary coordinator for the follow-up investigation. The officer will exhaust all investigative leads throughout the investigation.

SUPPLEMENTAL REPORTS -- A Supplemental Report, will be completed on the investigation:

- In Patrol every fourteen (14) days until the case is closed.

OFFICERS ASSIGNED TO FOLLOW-UP INVESTIGATIONS (con't)

- In Investigations every thirty (30) days until the case is closed.

PROSECUTION -- If during the course of the investigation sufficient probable cause develops to prosecute the suspect, submit the case to the City or Prosecutor for consideration of prosecution.

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INVESTIGATORY LEADS EXHAUSTED -- If, however, all leads have been exhausted and sufficient probable cause to identify the suspect does not develop, the officer will complete a Supplemental Report, indicating such and forward that report to their supervisor.



Gary Police Department - Policies & Procedures			
	Type of Directive General Order	Effective Date 1-25-2019	Policy Number 1-111
	Title Impounds	Last Revision 12-06-2018	Cross Reference
Authorized by Chief of Police: 		Rescinds: All Previous	

INDEX WORDS

Abandoned vehicles
Impounds
Inventory of vehicles
Towing
Notice to comply

I. POLICY

Gary Police Officers are often called upon to investigate or impound a vehicle in the City of Gary. It is the individual officer's responsibility to be aware of the current law concerning impounding, searching and towing vehicles based on available training within the department. Abandoned vehicles constitute a public nuisance, a hazard to traffic, and citizens view their removal as an essential police service. Likewise, vehicles involved in accidents or crimes may require towing and inventorying for evidentiary purposes. In either case, a motor vehicle is an important piece of personal property that must be managed and supervised if it enters police custody.

II. PURPOSE

The purpose of this policy is to establish GUIDELINES AND REFERENCES for towing or impounding of vehicles:

- A. Causing a Traffic or other hazard
- B. Abandoned, in junk condition, or parts (IC 9-9-2-1)
- C. Violating parking or other special restrictions
- D. With no or improper certificate of registration or license plate
- E. Being operated by a non-licensed or suspended driver
- F. Reported stolen
- G. Involved in accidents
- H. With a detective hold
- I. Involved in a forfeiture action
- J. Driver arrest
- K. Driver becomes ill or impaired
- L. Failure of Notice to Comply

III. PROCEDURES

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Policy Number		Impounds
1-111		

Maintain a record in the Police Department's Records Management System (RMS).

A. Accident

Any vehicle involved in an accident shall be removed to the shoulder of the road or elsewhere as soon as possible after officers have obtained necessary investigative information. Vehicles shall be removed from the shoulder without unnecessary delay.

1. Vehicles may be removed to the shoulder of the road or other legal parking spot which does not obstruct or impede vehicle travel on the roadway. Officers shall not use departmental vehicles to push cars off the roadway.
2. If the procedure above is not possible and a traffic hazard results, the officer shall tow the vehicle.

B. Emergency

Any vehicle found illegally parked in the vicinity of a fire, traffic, or airplane accident or area of emergency which creates a traffic hazard or interferes with the necessary work of police, fire, or other rescue workers shall be towed. Vehicles being used by the media shall operate from a designated staging area.

C. Impeding/danger to traffic

No vehicle shall be stopped in such a manner as to impede or render dangerous the use of the roadway by others, except in cases of mechanical breakdown or accident. If a disabled vehicle is not promptly removed and creates a traffic hazard, the officer shall tow the vehicle.

D. State/county/municipal vehicles

Paragraphs A, B, and C above shall not apply to any vehicle owned or controlled by the state or a local unit of government while actually engaged in construction or highway maintenance.

E. Blocking driveway or parking area

Any officer discovering or having report of any motor vehicle, trailer, or other vehicle blocking a driveway or parking area, or obstructing or interfering with the movement on any driveway or parking area without the land owner's permission shall order the vehicle towed.

F. Unattended traffic hazard/violation of law

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Policy Number		Impounds
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Officers may tow any unattended motor vehicle found on a public street or grounds that constitutes a traffic hazard or is parked in such a manner as to be in violation of the law.

G. Abandoned vehicle

See [IC 9-13-2-1](#) for current definition

H. Evidence/crime involvement

1. Upon supervisory approval, vehicles that are of an evidentiary value or involved in the commission of a crime shall be towed to a City of Gary impound lot for processing.
2. Vehicles subject to forfeiture shall be governed by the [Asset Forfeiture Policy](#).

I. Gary City Ordinance Violations

Refer to current listing of violations.

J. Indiana State Statute Violations

Refer to current listing of violations.

K. Arrests

Vehicles owned or operated by persons under custodial arrest for any charge.

IV. TOWING PROCEDURES

- A. Officers shall know under which provisions (**Section III A-K**) and laws that vehicles shall be towed and if a hold shall be placed on said vehicle.
- B. In an emergency involving major traffic congestion due to a disabled vehicle, the officer shall notify the dispatcher and shall request the appropriate type of wrecker.
- C. A log shall be kept of each instance of calling a tow service and the time of each call in the Police Department's Records Management System (RMS).
- D. When the wrecker arrives on the scene, the officer may advise the dispatcher of the time of arrival and any other subsequent problems or requests and add such to the notes of the call.

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Policy Number		Impounds
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- E. Once an impound is initiated and a tow company is contacted, the tow request cannot be cancelled and the vehicle will be towed. The responsible party shall be referred to the Records Division.

V. INVENTORY

A. Authority and purpose

A motor vehicle inventory is an administrative procedure designed to protect vehicles and their contents while in departmental custody. Any motor vehicle inventory must strictly observe the provisions of this general order. The purpose of the inventory is to protect the owner's property and to protect the department against claims and possible dangers. Inventories may be conducted without a warrant or probable cause when:

1. The vehicle has been lawfully seized or impounded pursuant to the arrest of the driver.
2. After towing the vehicle for violations, safety reasons, or other purposes as defined by law.

B. Inventory vs. search

An examination of the contents of a motor vehicle pursuant to a criminal investigation or with the intent to search for evidence is not an inventory but a vehicle search and as such is governed by constitutional safeguards. Officers are reminded of the "plain view doctrine" and the limitations upon the authority to search incident to a lawful arrest.

- C. A vehicle inventory report shall be completed whenever an officer tows a vehicle. The inventory shall be completed prior to the vehicle being removed.

D. Inventory procedures

1. The scope of the inventory extends to all areas of the vehicle in which personal property or hazardous materials may reasonably be found.

VI. VEHICLES THAT WILL NOT BE TOWED

- A. When the operator or responsible person has made private arrangements for the removal of the vehicle and it is NOT a hazard, has not been involved in an unreported accident or not connected with a crime.

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Impounds

- B. Officers shall not tow a vehicle off of private property without following state and local laws.